

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 6

Honorable Rafael Sivilla-Jones, Presiding

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2160

July 9, 2026

9:00 and 9:01 A.M.

RECORDING COURT PROCEEDINGS IS PROHIBITED

ORAL ARGUMENT

Before 4:00 PM today you must notify the:

- (1) Court by calling (408) 808-6856 and
- (2) Other side by phone or email that you will appear at the hearing to contest the tentative

If you fail to so notify the court or opposing side, the Court will not hear argument, and the tentative ruling will be adopted. (California Rule of Court 3.1308(a)(1) and Local Rule 8.E.)

REMOTE APPEARANCES

Phone only appearances are PROHIBITED. In-person appearances are preferred.

For necessary virtual appearances, you **must use video** and follow **Civil Local Rule 5**.

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Department 6: <https://santaclara.courts.ca.gov/online-services/remote-hearings>

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:00 1-2	22CV404026	Lorena Ayala vs. Athiya Javid, MD., et.al.	Defendant moved this court to deem admissions propounded on plaintiff admitted. Defendant propounded admissions on Plaintiff in December of 2025. Plaintiff never responded. Defendant's motion is GRANTED. Defendant's motion for sanctions are GRANTED.
9:00 3	23CV421635	Tao Lin vs. Amazon.com Services	See below.
9:00 4	24CV432814	Alonzo Gallaread v. Erik Montgomery, et. al.	Defendant requests two further testing of Plaintiffs. Although Court does have the discretion to order further testing of Plaintiffs, it appears that Plaintiffs have already endured significant and thorough neurological and mental testing. Defendant fails to show good cause as to why further testing is needed. Defendant's motion is DENIED.
9:00 5-6	24CV443183	Shenna Huynh vs REDDIS LABS, INC.	Plaintiff moves this court to compel disposition of expert witness and sanctions. Although it appears that Defendant has produced the expert witness, Defendant took over one year to produce the witness and only produced the witness after Plaintiff filed its motion. Although the petition to compel may be moot at this point, Plaintiff's motion for sanctions is GRANTED.
9:00 7	24CV449389	Samita Bhandary vs. Agradoot Ghatak, et.al.	Plaintiff moves this court to vacate its previous order denying reconsideration of courts previous order strike plaintiff's complaint without leave to amend. The Court finds that the previous court engaged in a thorough analysis in rendering both opinions to strike the complaint and to deny reconsideration. Plaintiff's motion is DENIED.
9:00 8	24CV455357	Corey Geroy vs. Ford Motor Company, et.al.	Defendant moves this court for summary adjudication on Plaintiff's sixth cause of action alleging fraudulent inducement. No opposition was filed against this motion. Defendant's motion is GRANTED.
9:00 9	24CV453537	Brandon Hillburn vs. Ford Motor Company, et.al.	Case to be continued.
9:00 10	24CV454552	Robert Busto vs. Ford Motor Company, et.al.	See below
9:00 11	26CV490111	Zhan Ping Ye, et.al. vs. Board of Directors of Summerton Condominium Association, et.al.	Plaintiffs request a preliminary injunction from Defendants imposing a \$14,855.31 emergency assessment. Defendants comprise a Homeowner's Association which determined an emergency assessment per condominium unit for health and safety issues. Court determines that the assessment was not arbitrary and that Plaintiff's are not likely to prevail. Plaintiff's motion for a preliminary injunction is DENIED.
9:01 1	25CV465961	Mariner Finance, LLC vs. Vickie Lee Hunter	Defendant's attorney moves this court to relieve himself as counsel. No objection was filed. Defendant's attorney's motion is GRANTED.
9:01 2	25CV466259	Purvika Patel vs. Hung Dinh	Defendant moves this court to accept Elizabeth Favoro as pro hac vice counsel for Defendant. No opposition was filed and Ms. Favoro satisfies the statutory criteria. Defendant's motion is GRANTED.

Calendar Line 3

Case Name: *Lin v. Amazon.com Services, LLC*

Case No.: 23CV421635

After full consideration of the evidence, the separate statements submitted by the parties, and the authorities submitted by each party, the court makes the following rulings:

On August 22, 2023, plaintiff Tao Lin (“Plaintiff”) filed a form complaint that did not include any causes of action. On February 21, 2024, after defendant Amazon.com Services LLC (“Defendant”) demurred, Plaintiff filed a first amended complaint (“FAC”) that alleged a cause of action for breach of contract (see FAC, first cause of action for breach of contract, referring to Attachments BC-2 and BC-4) which includes an attachment that lists three bullet points: breach of employment contract, employment retaliation and unlawful demand for employment repayment. Defendant for summary judgment on the FAC, or, in the alternative, moves for summary adjudication of each cause of action.

**DEFENDANT’S MOTION FOR SUMMARY JUDGMENT, OR, IN THE
ALTERNATIVE, FOR SUMMARY ADJUDICATION**

Defendant’s burden on summary judgment

“A defendant seeking summary judgment must show that at least one element of the plaintiff’s cause of action cannot be established, or that there is a complete defense to the cause of action. ... The burden then shifts to the plaintiff to show there is a triable issue of material fact on that issue.” (*Alex R. Thomas & Co. v. Mutual Service Casualty Ins. Co.* (2002) 98 Cal.App.4th 66, 72; internal citations omitted; emphasis added.)

“The ‘tried and true’ way for defendants to meet their burden of proof on summary judgment motions is to present affirmative evidence (declarations, etc.) negating, as a matter of law, an essential element of plaintiff’s claim.” (Weil et al., Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2007) ¶ 10:241, p.10-91, *citing Guz v. Bechtel National Inc.* (2000) 24 Cal.4th 317, 334; emphasis original.) “The moving party’s declarations and evidence will be strictly construed in determining whether they negate (disprove) an essential element of plaintiff’s claim ‘in order to avoid unjustly depriving the plaintiff of a trial.’” (*Id.* at § 10:241.20, p.10-91, *citing Molko v. Holy Spirit Assn.* (1988) 46 Cal.3d 1092, 1107.)

“Another way for a defendant to obtain summary judgment is to ‘show’ that an essential element of plaintiff’s claim cannot be established. Defendant does so by presenting evidence that plaintiff ‘does not possess and cannot reasonably obtain, needed evidence’ (because plaintiff must be allowed a reasonable opportunity to oppose the motion.) Such evidence usually consists of admissions by plaintiff following extensive discovery to the effect that he or she has discovered nothing to support an essential element of the cause of action.” (*Id.* at ¶ 10:242, p.10-92, *citing Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 854-855.)

Defendant’s arguments

Defendant moves for summary judgment, or, in the alternative for summary adjudication of each cause of action on the grounds that: the claim for retaliation lacks merit because Plaintiff did not timely exhaust his administrative remedies; the claim for retaliation lacks merit because there is no protected activity under FEHA; the claim for retaliation lacks merit because Plaintiff did not experience an adverse employment action; the claim for retaliation lacks merit because there is no causal connection between Plaintiff’s resignation and the alleged adverse actions; the claim for breach of contract lacks merit because there was no breach of the employment contract by Defendant’s actions or nonaction; and, there is no claim for demand for repayment because there is no cognizable cause of action for a demand for repayment and Defendant did not do

anything wrong in seeking repayment for monies Plaintiff should never have received for work that was never performed.

Defendant meets its initial burden to demonstrate that the FAC lacks merit.

Retaliation claim

The elements for a claim for retaliation are: “(1) the employee’s engagement in a protected activity... ; (2) retaliatory animus on the part of the employer; (3) an adverse action by the employer; (4) a causal link between the retaliatory animus and the adverse action; (5) damages; and (6) causation.” (*Le Mere v. Los Angeles Unified School Dist.* (2019) 35 Cal.App.5th 237, 243.) In support of its motion, Defendant presents: the declaration of its Principal HR Business Partner Claire Amsler; the declaration of Plaintiff’s former supervisor Santosh Lahankar; the transcript of Plaintiff’s deposition; the offer letter; the June 30, 2021 email regarding the O-1 approval timeline; a DHS U.S. Citizenship and Immigration Services I-797A Notice of Action regarding Plaintiff stating that the petition and request for change of status was approved; the July 10, 2021 email from Mario Ruiz of Fragomen, Del Rey, Bernsen & Loewy informing Plaintiff that the petition was approved; the August 2, 2021 email from Plaintiff to Jeanlee Bazile of Fragomen, Del Rey, Bernsen & Loewy in which he stated that “I checked my case from uscis.gov, and show ‘Case Was Approved And My Decision Was Emailed’”; an email chain discussing the timeline of Plaintiff’s suspension for lapse in work authorization, Plaintiff’s approval of petition and the lifting of his suspension resulting in payment, Defendant’s notification to Plaintiff that his visa was approved and thus could return to work, Plaintiff’s acknowledgement of the approval notice, Plaintiff’s supervisor’s query to Plaintiff as to when he was coming back to work, and the request for repayment for monies paid while Plaintiff was not making efforts to return to work while being paid for work, the August 11, 2021 email from Abraham Badran of Fragomen, Del Rey, Bernsen & Loewy informing Plaintiff that they received the O-1 approval notice for his petition; September 3 and September

7, 2021 emails with attorneys at Fragomen, Del Rey, Bernsen & Loewy regarding the receipt of the approval notice and application package; October 8, 2021 emails between Plaintiff and managers regarding his return to work; Plaintiff's responses to Defendant's special interrogatories, set two; peer feedback regarding Plaintiff's coding; the January 5, 2022 email from Plaintiff requesting an employment verification letter for his green card and a response indicating that "Amazon only sponsor green card for L5 level employees... Amazon don't sponsor green card for L4 level employees"; a January 5, 2022 email from plaintiff informing his supervisor that he is resigning from his position as SDE for Amazon; the January 13, 2022 email from Plaintiff in which he states that January 14, 2022 will be his last day at Amazon and asking what he needs to do to transfer his Green Card application to his new employer; a January 17, 2023 email from Carrie Biesinger regarding an investigation of Plaintiff's concerns, including his performances and his claims; Plaintiff's Focus Performance Feedback; an email chain between Plaintiff and Carrie Biesinger regarding Plaintiff's claims; January 14, 2023 email from Plaintiff to Claire Amsler regarding Defendant's claim of overpayment; calculations regarding overpayment; a February 12, 2022 letter regarding repayment; Defendant's employment policies; Plaintiff's 2021 performance review; the FAC; and, the CRD/EEOC complaint filed on August 4, 2025.

Defendant's evidence meets its initial burden to demonstrate that: Plaintiff neither engaged in a protected activity nor suffered an adverse action by Defendant (see evidence cited by Def.'s separate statement of undisputed material facts, nos. ("UMFs") 77-98); and, there is neither evidence of a retaliatory animus on the part of Defendant nor a causal link between any retaliatory animus and any adverse action (see UMFs 99-120). As Defendant argues, any purported action by Defendant after Plaintiff's voluntary resignation is not an adverse employment action as Plaintiff was no longer employed. (See *Featherstone v. Southern California Permanente Medical Group* (2017) 10 Cal.App.5th 1150, 1162-1163 (stating that "an adverse employment action is one that affects an employee, not a former employee, in the terms, conditions or privileges of his or her employment, not in the terms, conditions or privileges of his

or her unemployment... an employee who voluntarily resigns cannot show that he or she has suffered an adverse employment decision... refusing to accept rescission of a resignation is ‘not an adverse employment action for the simple reason that the employment relationship has ended’”).)

Breach of contract

“The elements of a breach of contract claim are that a contract was formed; that the plaintiff did everything required by the contract; that the defendant did not do something required by the contract; and that the plaintiff was harmed as a result.” (*CSAA Ins. Exchange v. Hodroj* (2021) 72 Cal.App.5th 272, 276 (Sixth District).) Defendant presents the offer letter, the FAC, emails regarding the green card application and repayment, the Amsler declaration, the Lahankar declaration, Notices of Action and Plaintiff’s deposition testimony to demonstrate that it did not breach any provision of the purported employment contract—the only written contract between the parties. (See UMFs 48-70.) The FAC alleges that “the execution of an employment verification letter... [was] a requirement by... the employment offer contract.” (FAC, Attachment BC-2, ¶ 1; see also Attachment BC-4, ¶ 1 (alleging that “Defendant breached the employment offer contract by refusing to sign the employment verification letter”).) Here, there is nothing in the offer letter that requires Defendant to sign an employment verification letter. The refusal to sign the employment letter may result in Plaintiff’s unemployment; however, the offer letter expressly indicates that Plaintiff is an at will employee and that Defendant “may terminate our relationship at any time for any re, with or without cause.” The Amsler declaration states that the offer letter “is the only written agreement between Amazon and Plaintiff.” (Amsler decl. in support of motion for summary judgment, ¶ 3.) Defendant meets its initial burden to demonstrate that the breach of contract claim lacks merit.

“Unlawful Demand for Employment Repayment” claim

There is no known cause of action for unlawful demand for employment repayment and the FAC fails to point to any statute to suggest a violation of any statute. Regardless, Defendant argues that even if such a cause of action existed, it rightfully sought repayment of monies paid to and improperly taken by Plaintiff for work not performed. Defendant presents portions of Plaintiff's deposition testimony, the Amsler and Lahankar declarations, the offer letter, the June 30, 2021 email regarding the O-1 approval timeline, the DHS U.S. Citizenship and Immigration Services I-797A Notice of Action regarding Plaintiff stating that the petition and request for change of status was approved, the July 10, 2021 email from Mario Ruiz of Fragomen, Del Rey, Bernsen & Loewy informing Plaintiff that the petition was approved, the August 2, 2021 email from Plaintiff to Jeanlee Bazile of Fragomen, Del Rey, Bernsen & Loewy in which he stated that "I checked my case from uscis.gov, and show 'Case Was Approved And My Decision Was Emailed'", an email chain discussing the timeline of Plaintiff's suspension for lapse in work authorization, Plaintiff's approval of petition and the lifting of his suspension resulting in payment, Defendant's notification to Plaintiff that his visa was approved and thus could return to work, Plaintiff's acknowledgement of the approval notice, Plaintiff's supervisor's query to Plaintiff as to when he was coming back to work, and the request for repayment for monies paid while Plaintiff was not making efforts to return to work while being paid for work, the August 11, 2021 email from Abraham Badran of Fragomen, Del Rey, Bernsen & Loewy informing Plaintiff that they received the O-1 approval notice for his petition; September 3 and September 7, 2021 emails with attorneys at Fragomen, Del Rey, Bernsen & Loewy regarding the receipt of the approval notice and application package, October 8, 2021 emails between Plaintiff and managers regarding his return to work, Plaintiff's responses to Defendant's special interrogatories, set two, the January 5, 2022 email from Plaintiff requesting an employment verification letter for his green card and a response indicating that "Amazon only sponsor green card for L5 level employees... Amazon don't sponsor green card for L4 level employees," the January 5, 2022 email from plaintiff informing his supervisor that he is resigning from his position as SDE for Amazon, the January 13, 2022 email from Plaintiff in which he states that January 14, 2022 will be his last day at Amazon and asking what he needs to do to transfer his

Green Card application to his new employer, an email chain between Plaintiff and Carrie Biesinger regarding Plaintiff's claims, a January 14, 2023 email from Plaintiff to Claire Amsler regarding Defendant's claim of overpayment, calculations regarding overpayment, a February 12, 2022 letter regarding repayment, Defendant's employment policies, the FAC and the CRD/EEOC complaint filed on August 4, 2025. Defendant meets its initial burden to demonstrate that the claim for unlawful demand for employment repayment lacks merit because it was justified in seeking repayment. (See UMFs 121-133, 147-159.)

As Defendant has met its initial burden as to each of the three claims of the FAC, Defendant meets its initial burden to demonstrate that the FAC lacks merit.

In opposition, Plaintiff fails to demonstrate the existence of a triable issue of material fact.

In opposition, Plaintiff's argument is a single page. Plaintiff's lone evidence filed in support of his opposition at the time of his opposition is his own declaration; however, much of the declaration's statements are hearsay, lack foundation, violates the best evidence rule, are speculative, are argumentative or a legal conclusion and/or contradicts prior testimony. Defendant's objections numbers 1-7 to paragraphs 2-4 and 6-8 of Plaintiff's declaration are SUSTAINED. "A party cannot avoid summary judgment by asserting facts based on mere speculation and conjecture, but instead must produce admissible evidence raising a triable issue of fact." (*LaChapelle v. Toyota Motor Credit Corp.* (2002) 102 Cal.App.4th 977, 981.) Nor may a party "evade summary judgment by submitting a declaration contradicting his own prior deposition testimony... [be] based on opinion and conclusions instead of evidentiary facts... [and must demonstrate] personal knowledge and competency." (*Guthrey v. State of California* (1998) 63 Cal.App.4th 1108, 1120.)

Moreover, Plaintiff's separate statement in opposition fails to cite to any evidence to support any of Plaintiff's assertions. (See Code Civ. Proc. § 437c, subd. (b)(3) (stating that

“[t]he opposition papers shall include a separate statement that responds to each of the material facts contended by the moving party to be undisputed... [e]ach material fact contended by the opposing party to be disputed shall be followed by a reference to the supporting evidence... [f]ailure to comply with this requirement of a separate statement may constitute a sufficient ground, in the court’s discretion, for granting the motion”); see also *Batarse v. Service Employees Internat. Union, Local 1000* (2012) 209 Cal.App.4th 820, 828 (stating that “[e]ach disputed fact must be followed by a reference to supporting evidence... [f]ailure to comply with this requirement of a separate statement may constitute a sufficient ground, in the court’s discretion, for granting the motion”); see also Rule of Court 3.1350, subd.(f)(2) (stating that “An opposing party who contends that a fact is disputed must... describe the evidence that supports the position that the fact is controverted... [c]itation to the evidence in support of the position that a fact is controverted must include reference to the exhibit, title, page, and line numbers”).) Regardless, it is clear that Plaintiff’s declaration—the sole evidence submitted with his opposition—fails to demonstrate the existence of a triable issue of material fact.

In reply, Defendant argues that: none of the evidence submitted in opposition demonstrates the existence of a triable issue of material fact and Plaintiff’s arguments are based on speculation and conjecture; the separate statement is woefully deficient as it is not based on any evidence; and, Plaintiff failed to address Defendant’s legal arguments as to whether each of the claims lack merit, or cite to any legal authority in his arguments. The Court agrees with Defendant as to each of its arguments.

Perhaps recognizing the deficiencies in his opposition, after Defendant filed its reply brief, Plaintiff then filed several documents, including a supplemental declaration, emails and Defendant’s records. However, this evidence was, of course, neither referenced in Plaintiff’s opposition nor his opposing separate statement, and was submitted after Defendant filed its reply brief. Plaintiff also did not file an amended separate statement to correct the deficiencies pointed out by Defendant in its reply brief. In the exercise of its discretion, the Court declines to

consider this newly filed evidence and thus, Plaintiff fails to demonstrate the existence of a triable issue of material fact. (See *San Diego Watercrafts, Inc. v. Wells Fargo Bank* (2002) 102 Cal.App.4th 308, 316 (consideration of evidence on summary judgment submitted after the opposing party responded to the issues raised in the separate statement was a violation of due process rights, also stating that “where evidence is not referenced... and is not called to the attention of the court at all, a summary judgment should not be reversed on grounds the court should have considered such evidence”); see also *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537 (stating that “[t]he general rule of motion practice, which applies here, is that new evidence is not permitted with reply papers... [t]his principle is most prominent in the context of summary judgment motions”); see also *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252 (stating that “[t]he reply also included 153 pages of ‘Exhibits and Evidence in Support of Reply’ ... [n]o such evidence is generally allowed”); see also *Valentine v. Plum Healthcare Group, LLC* (2019) 37 Cal.App.5th 1076, 1089 (stating that “the trial court erred in admitting the evidence... [n]ew evidence is generally not permitted with reply papers”).)

As Plaintiff fails to demonstrate the existence of a triable issue of material fact, Defendant’s motion for summary judgment is GRANTED.

CONCLUSION

Defendant’s motion for summary judgment is GRANTED.

Defendant’s objections numbers 1-7 to paragraphs 2-4 and 6-8 of Plaintiff’s declaration are SUSTAINED.

The Court did not consider Plaintiff’s evidence filed after Defendant filed its reply brief.

Defendant shall prepare and submit a proposed final order consistent with this tentative ruling and a proposed judgment.

Calendar Line 10

Case Name: *Robert Busto v. Ford Motor Company et al.*

Case No.: 24CV454552

On June 4, 2020, plaintiff Robert Busto (“Busto”) purchased a 2019 Ford Expedition (the “Subject Vehicle”). (Complaint, ¶ 10.) Ford Motor Company (“Ford”) delivered the Subject Vehicle to Busto with various warranties. (*Id.* at ¶ 11.) Within the express warranty periods, the Subject Vehicle exhibited defects, including transmission, engine, and electrical defects. (*Id.* at ¶ 15.)

On December 19, 2024, Busto filed a complaint against Ford and co-defendant Gosch Ford Temecula, asserting the following causes of action: (1) violation of subdivision (d) of Civil Code section 1793.2; (2) violation of subdivision (b) of Civil Code section 1793.2; (3) violation of subdivision (a)(3) of Civil Code section 1793.2; (4) breach of the implied warranty of merchantability; (5) fraudulent inducement – concealment; and (6) negligent repair. Ford moves for summary adjudication as to the fifth cause of action for fraud on the grounds that Busto cannot prove the necessary elements of this cause of action. (Notice of Summary Adjudication Motion, p. 1:8-12.)

The court exercises its discretion to consider Busto’s untimely opposition.

“An opposition to the motion shall be served and filed not less than 20 days preceding the noticed or continued date of hearing, unless the court for good cause orders otherwise.” (Code Civ. Proc., § 437c, subd. (b)(2).) Ford’s motion was scheduled to be heard on July 9, 2026. Bustos needed to file an opposition no later than June 18, 2026, to be considered timely. Bustos, however, did not file and serve an opposition until June 25, 2025. Despite the late opposition, Ford timely filed and served reply papers addressing the substantive merits of the opposition. The court therefore will consider the merits of the opposition. (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 806 [courts have a policy favoring disposition of cases on the merits rather than on procedural grounds]; *Kapitanski v. Von’s Grocery Co.* (1983) 146 Cal.App.3d 29, 32 [“Cognizant of the strong policy favoring the disposition of cases on their merits judges usually consider whether to exercise their discretion in applying local court rules and frequently consider documents which have been untimely filed.”], internal citations omitted.) The court acknowledges, however, that Ford had only a single day to file a timely reply to Busto’s opposition given the date that Busto filed the opposition. The court admonishes Busto to

comply with all applicable statutes and rules with respect to future filings. Any future late filings may be disregarded.

The parties' burdens on a motion for summary judgment or adjudication.

The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*).) “A defendant seeking summary judgment must show that at least one element of the plaintiff’s cause of action cannot be established, or that there is a complete defense to the cause of action. . . . The burden then shifts to the plaintiff to show there is a triable issue of material fact on that issue.” (*Alex R. Thomas & Co. v. Mutual Service Casualty Ins. Co.* (2002) 98 Cal.App.4th 66, 72; internal citations omitted.) “There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Aguilar, supra*, at p. 850.) A “party cannot avoid summary judgment by asserting facts based on mere speculation and conjecture, but instead must produce admissible evidence raising a triable issue of fact.” (*Christina C. v. County of Orange* (2013) 220 Cal.App.4th 1371, 1379, internal citations and quotation marks omitted.)

Ford has met its burden as to the complaint’s fifth cause of action for fraudulent inducement.

“The elements of fraudulent concealment are: (1) the defendant concealed or suppressed a material fact; (2) the defendant was under a duty to disclose the fact to the plaintiff; (3) the defendant intentionally concealed or suppressed the fact with the intent to defraud the plaintiff; (4) the plaintiff was unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact; and (5) as a result of the concealment or suppression of the fact, the plaintiff sustained damage.” (*Burch v. CertainTeed Corp.* (2019) 34 Cal.App.5th 341, 348 (*Burch*), internal citation omitted.)

Ford argues that Busto has failed to present any evidence in support of the complaint’s fifth cause of action. According to Ford, it has propounded written discovery in this matter “seeking all facts, witnesses, and documents” supporting the complaint’s fifth cause of action and Busto failed to provide any facts or documents showing a “Transmission Defect,” much less that “Ford had prior exclusive knowledge of the same.” (Memorandum of Points and Authorities in Support of Motion for Summary Adjudication (“MPA”), p. 6:11-26.)

In response to the special interrogatory “[s]tate ALL facts that support the allegations set forth in YOUR fifth cause of action for Fraudulent Inducement — Concealment, as set forth in YOUR COMPLAINT,” Busto responded, excluding objections, that information “responsive to this request may be found in the Complaint and documents produced in connection with Plaintiff’s Responses to Defendant’s Requests for Production of Documents, Set One. Pursuant to Code Civ. Proc. § 2030.230, Plaintiff refers Defendants to the documents Plaintiff produced in response to Defendant’s Request for Production of Documents to Plaintiff, Set One. Discovery and investigation are ongoing, and Plaintiff reserves the right to supplement and/or amend this

response.” (Declaration of Kenneth D. Hollenbeck in Support of Ford’s Motion for Summary Adjudication (“Hollenbeck Declaration” or “Hollenbeck Decl.”), Ex. C, pp. 15:17-18, 16:7-12.)

In response to the interrogatory “IDENTIFY ALL PERSONS with knowledge of facts that support the allegations set forth in YOUR fifth cause of action for Fraudulent Inducement — Concealment, as set forth in YOUR COMPLAINT,” Busto responded, excluding objections, that “Plaintiff, who may be contacted through counsel of record; Defendant; Defendant’s agents, representatives, and employees, including Defendant’s authorized repair facility and the personnel they employ, among others. Information responsive to this request may be found in the Complaint and documents produced in connection with Plaintiff’s Responses to Defendant’s Requests for Production of Documents, Set One.” (Hollenbeck Decl., Ex. C at pp. 16:14-16, 17:4-9.)

Finally, in response to the interrogatory “IDENTIFY ALL DOCUMENTS that support the allegations set forth in YOUR fifth cause of action for Fraudulent Inducement — Concealment, as set forth in YOUR COMPLAINT,” Busto, excluding objections, referred Ford to “the documents Plaintiff produced in response to Defendant’s Request for Production of Documents to Plaintiff, Set One.” (Hollenbeck Decl., Ex. C at p. 17:16-17, 18:6-7.)

Ford has also submitted to the court the documents produced by Gusto in response to Ford’s requests for production. They consist of a “retail installment sale contract,” a “limited warranty,” a “maintenance plan application,” a “used vehicle disclosure,” what appear to be invoices and service reports from a repair center, proof of insurance, vehicle registration, and a certificate of title. (Hollenbeck Decl., Ex. D.)

The court finds that Ford has met its initial burden to establish that at least one element of the complaint’s fifth cause of action for fraud cannot be established. A “moving defendant may rely on factually devoid discovery responses to shift the burden of proof pursuant to section 437c, subdivision (o)(2). Once the burden shifts as a result of the factually devoid discovery responses, the plaintiff must set forth the specific facts which prove the existence of a triable issue of material fact.” (*Union Bank v. Superior Court* (1995) 31 Cal.App.4th 573, 590; see also *Leyva v. Garcia* (2018) 20 Cal.App.5th 1095, 1102-1103 [“a defendant may show the plaintiff does not possess evidence to support an element of the cause of action by means of presenting the plaintiff’s factually devoid discovery responses from which an absence of evidence may be reasonably inferred.”], internal citation omitted.) Having reviewed the discovery responses and evidence described above, the court is inclined to agree with Ford that Busto’s discovery responses are “factually devoid” such that an “absence of evidence may be reasonably inferred.” The various documents produced by Busto and relied on in answering Ford’s discovery responses do not establish that Ford intentionally concealed or suppressed a material fact. (See *Burch*, supra, 34 Cal.App.5th at p. 348.) Moreover, the court notes that Busto’s opposition to Ford’s motion does not dispute Ford’s discovery-based argument or direct the court to evidence Busto or Ford produced during discovery. Instead, Busto’s opposition directs the court to documents unsealed from a federal case and “technical service bulletins.” The court discusses these documents below.

In opposition, Busto has not demonstrated a triable issue of fact as to the complaint's fifth cause of action for fraudulent inducement.

The court finds that Busto has not demonstrated that a triable issue of material fact exists. As Busto relies entirely upon documents Busto has requested that the court judicially notice to demonstrate a triable issue of fact, the court addresses this issue first. (Opposition to Ford's Motion for Summary Adjudication ("Opposition"), pp. 7:22-8:4 ["Accordingly, under this well-established law, Plaintiffs need only show that Defendant was generally aware of defects in the 10R80 transmission prior to the June 4, 2020 sale of the Subject Vehicle. As set forth above in Section II, Defendant's internal communications and bulletins demonstrate Defendant's pre-sale knowledge of the Transmission Defect. . . ."].)

The court DENIES Busto's requests for judicial notice. Busto requests that the court judicially notice 18 exhibits (40, if the court considers each individual "service bulletin" a separate document). Busto argues that the court should take judicial notice of Exhibits 1 through 17 because they "were unsealed" in a federal case from the Northern District of California and "are thus part of the public record." (Busto's Request for Judicial Notice in Support of Opposition to Motion for Summary Adjudication, p. 1:2-7.) Busto requests that the court take judicial notice of Exhibit 18 because it consists of "records that were already publicly accessible." (*Id.* at p. 1:6-7.)

Under Evidence Code section 452, the court may judicially notice several types of "matters," including official acts of the "legislative, executive, and judicial departments of the United States" and records of "any court of this state" or "any court of record of the United States or of any state of the United States." (Evid. Code § 452, subds. (a)-(h).) The 18 exhibits subject to Busto's request do not fit into any of these categories. Nor, importantly, does Busto actually argue that they do, let alone cite any specific provision of Evidence Code section 452 in his request for judicial notice. The exhibits Busto requests that the court judicially notice, with the exception of Exhibit 18, appear to be documents produced in discovery in a separate matter. Discovery responses are not properly the subject of judicial notice. (*TSMC North America v. Semiconductor Manufacturing Internat. Corp.* (2008) 161 Cal.App.4th 581, 594, fn. 4.) Nor is it clear from the documents themselves that they were actually filed with any court subject to judicial notice under Evidence Code section 452, subdivision (d). As to exhibit 18, whether a document was "already publicly accessible" does not automatically make it subject to judicial notice. Nor does Busto provide the court with any legal authority indicating otherwise. Ultimately, then, the 18 exhibits are not the proper subject for judicial notice.

Even if the court had judicially noticed these documents, the court would have agreed with many of the evidentiary objections made by Ford to these documents. (See, e.g., Ford's Objections to Exhibits to Request for Judicial Notice.) "Evidence Code sections 452 and 453 permit the trial court to take judicial notice of the *existence* of judicial opinions and court documents, along with the truth of the results reached—in the documents such as orders, statements of decision, and judgments—but [the court] cannot take judicial notice of the truth of hearsay statements in decisions or court files, including pleadings, affidavits, testimony, or statements of fact." (*People v. Woodell* (1998) 17 Cal.4th 448, 455, internal quotation marks and citations omitted, emphasis original.) Busto submits the 18 exhibits discussed above for "the

truth of the matter stated”—Busto argues that Ford’s “internal communications and bulletins demonstrate Defendant’s pre-sale knowledge of the Transmission Defect.” (Opposition, pp. 7:22-8:4; *People v. Flinner* (2020) 10 Cal.5th 686, 735 [“Hearsay is an out-of-court statement offered for the truth of the matter asserted and is generally inadmissible.”], internal citation omitted.) Busto also persuasively objects to these documents on several other grounds, including a lack of proper foundation.

In sum, Busto’s argument in opposition to Ford’s motion for summary adjudication relies upon documents the court has declined to judicially notice. Busto has not otherwise submitted these documents in evidence, but, if Busto had, the court would have agreed with several of the evidentiary objections made by Ford in reply. The court also notes that Busto discusses case law indicating that “evidence concerning vehicles other than the plaintiff’s vehicle are nonetheless relevant to plaintiff’s claims,” “Plaintiff does not need to establish that Defendant was aware of the occurrence of a defect in Plaintiff’s specific vehicle,” and “courts overwhelmingly hold that technical service bulletins and recalls constitute evidence of fraudulent concealment.” (Opposition, pp. 5:27-6:1, 6:16-25, 7:1-2.) The issue, however, is that the documents Busto relies on in making these arguments are not properly before the court. Moreover, the court notes that several of the cases relied on by Busto to argue that “technical services bulletins and recalls constitute evidence of fraudulent concealment” are federal decisions decided at the pleading stage where the court examined the sufficiency of the allegations rather than determining whether a plaintiff met their burden to establish through admissible evidence a triable issue of material fact. (See *In re MyFord Touch Consumer Litig.* (N.D. Cal. 2014) 46 F.Supp.3d 936, 999 [“For the foregoing reasons, Ford’s motion to dismiss is granted in part and denied in part. . .”]; *Sloan v. GM, LLC* (N.D. Cal. 2018) 287 F.Supp.3d 840, 850 [“GM moves to dismiss on several grounds . . .”].) Here, the court finds that Busto has not met this burden.

The court GRANTS Ford’s motion for summary adjudication as to the complaint’s fifth cause of action for fraudulent inducement.